

DISTRIBUTION AND RESELLER AGREEMENT

This Distribution and Reseller Agreement (the "Agreement") is entered into as of March 15, 2026 (the "Effective Date"), by and between **Northstar Medical Devices Inc.**, a Massachusetts corporation with its principal place of business at 220 Harbor Park Drive, Boston, MA 02210 ("Manufacturer"), and **Horizon Health Supply Co.**, a Texas limited partnership with its principal place of business at 8800 Commerce Street, Dallas, TX 75201 ("Distributor").

1. Appointment and Territory

Manufacturer hereby appoints Distributor as its non-exclusive authorized reseller of the Products listed in Exhibit A within the **United States and Canada** (the "Territory"). Distributor shall not market, promote, or sell Products outside the Territory without Manufacturer's prior written consent.

2. Term and Termination

This Agreement shall remain in effect for an initial term of two (2) years from the Effective Date and shall automatically renew for successive one (1) year periods unless either Party provides **ninety (90) days** prior written notice of non-renewal. Either Party may terminate this Agreement immediately upon written notice if the other Party becomes insolvent, files for bankruptcy, or materially breaches any payment obligation and fails to cure within thirty (30) days.

3. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the **State of New York**, without regard to its conflict-of-laws principles. The Parties agree that any legal action arising under this Agreement shall be brought exclusively in the state or federal courts located in New York County, New York.

4. Limitation of Liability and Indemnification

EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT OR CONSEQUENTIAL DAMAGES. MANUFACTURER'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED **1,250,000 USD** (ONE MILLION TWO HUNDRED FIFTY THOUSAND DOLLARS). Distributor shall indemnify Manufacturer against third-party claims arising from Distributor's marketing materials or unauthorized representations.



5. Confidentiality

Each Party acknowledges that it may receive proprietary pricing, customer lists, and product roadmaps ("Confidential Information"). Confidential Information shall not be disclosed to any third party except as required to perform under this Agreement. Confidentiality obligations survive termination for **five (5) years**.